

Before the Hon'ble Court of Special Judge-II, CBI, Ernakulam.

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Cochin **PS:** ACB Cochin
Year: 2026
FIR No: RC0332026A0002 **Date:** 17/03/2026

2. **Acts & Sections:**

Acts	Sections	R/W Section
PC Act-1988 (As amended in 2018)	13(2) r/w (13)(1)(a)	
IPC	120-B	420,406,409,468,471

3. **Suspected offences:**

Criminal Conspiracy, Forgery, Cheating, Criminal Breach of Trust, Criminal Misconduct, Criminal breach of trust by Public Servant

(a) **Occurrence of offence:**

Day:

From Date:

2019

Time Period:

To Date: 2024

(b) **Information Received at PS:**

Date:

(c) **General Diary Reference:**

Entry No.:

10

Date:

17/03/2026

Time: 17:24:50

4. **Type of Information:** Source Information

5. **Place of Occurrence:**

Wellington Island, Cochin

(a) **Direction & distance from PS:**

13 KM South West

Beat No.:

(b) **Address:**

Plot No.:

Cochin Port Trust, Wellington Island, Cochin

Area:

City:

Cochin

Pin:

State:

District:

(c) **In case, outside the limit of this Police Station, then**

Name of PS:

District:

6. **Complainant / Informant:**

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1

Name: Mr.N.K Naser (1)

Address:

Office Coordinator, ITDC Duty Free Shop, Wellington Island, Cochin, Ernakulam, Kerala

Accused 2

Name: Mr.Subin (2)

Address:

Manager, Shop of Flemingo, Ernakulam Wharff, Wellington Island, Cochin, Ernakulam, Kerala

Accused 3

Name: M/s.Flemingo (Pvt.Firm)(3)

Address:

Ernakulam Wharf, Wellington Island, Cochin, Ernakulam, Kerala

8. **Reasons for delay in reporting by the complainant/informant:**

No Delay

10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any:

12. First information contents:

The brief of the case is that a Joint Surprise Check was conducted by CBI officials of CBI ACB Cochin and Vigilance and Disciplinary Wing of ITDC, New Delhi at ITDC Duty Free Shop and M/s Flemingo Duty Free Shop (Pvt. firm) located at Ernakulam Wharf of Cochin Port Trust, Wellington Islands, Cochin on 24.03.2025.

ITDC imports liquor (duty free item) through Chennai Port and it is re-warehoused in Special Warehouse, Cochin. After permission of Customs, the Duty Free item are taken from the Special Warehouse to the Duty Free Shop (DFS) for sale to eligible persons as per Trade Notice 21/2018 dated 11.07.2018 issued by Customs House, Cochin. Since the Duty Free shop comes under the bonded area, the Customs procedure has to be followed.

During surprise check, it was revealed that forged/fabricated sales invoices to project that the sale was made to genuine passengers, were raised by the staff of the DFS of ITDC and M/s Flemingo against the crew members of vessels using their name and passport details who never entered Ernakulam Wharf area and were off-shore about twelve plus nautical miles away from the wharf area (anchorage area) and the duty free items were illegally removed/diverted from the bonded area in violation of provisions of Customs Act. The bogus sale at the DFS was detected during the inspection conducted by the Dock Intelligence Unit of Rummage and Intelligence Division, Customs during 2024. The approximate assessment of duty liability of ITDC is estimated to be Rs. 2 crores and that of Flemingo is Rs. 90 lakhs.

During the period from 2019-2024, the ITDC DFS was run by Shri N K Naser, Office Co-ordinator Gr.I, staff of ITDC Duty Free Shop, (a public servant), Cochin Port Trust, and the Flemingo DFS was run by Shri Subin (private person), Manager, M/s Flemingo DFS. They in conspiracy with each other have raised bogus sales invoices and shown bogus sales of Duty Free items and thereby illegally sold duty free items from the Customs area situated within the Ernakulam Wharf to ineligible persons and thereby caused wrongful loss to Govt. Exchequer in the form of customs duty to a tune of Rs. 2.9 crores and corresponding wrongful gain to themselves which reveals the commission of cognizable offences punishable under section 120-B r/w 420, 406, 409, 468, 471 IPC and substantive offences thereof and section 13(2) r/w 13(1)(a) of PC Act 1988 (as amended in 2018).

Therefore a regular case is registered against Shri N K Naser, Office Co-ordinator Gr.I, ITDC DFS u/s 120(B) r/w 420, 406, 409, 468 and 471 IPC and substantive offences thereof and Section 13(2) r/w 13(1)(a) of PC Act, 1988 (as amended in 2018) and against Shri Subin, Manager and M/s Flemingo (Pvt. Firm) u/s 120(B) r/w 420, 406, 409, 468 and 471 IPC and substantive offences thereof.

The required permission under section 17(A) of PC Act 1988 (as amended in 2018) has been obtained for investigating the complicity of the public servant from the competent authority. The consent u/s 6 of DSPE Act, 1946 Govt. of Kerala vide No. G.O(M.S) No.167/2025/HOME dtd.30.08.2025 and Erattum Notification dtd 12.11.2025 & 30.01.2026 and Notification u/s.5 of DSPE Act, 1946 issued by the Govt. of India vide Notification F.No. 228/12/2026-AVD-II dtd 05.03.2026 are annexed.

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

Madhavankutty K

Rank:

INSPECTOR (ACB Cochin)

No:

179132

to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

Permission under section 17 A of PC Act, 1988 (As amended in 2018)

Consent under section 6 of DSPE Act 1946 by Govt of Kerala (Eratum)

Consent under section 6 of DSPE Act 1946 by Govt of Kerala(Eratum)

Consent under section 6 of DSPE Act 1946 by Govt of Kerala

Consent under section 5 of DSPE Act 1946 by Govt of India

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

14. Signature/Thumb Impression of
the complainant/informant

Signature of Officer
in-charge Police
Station

Name: P Renukadevi

Rank: DY. INSP. GENERAL OF
POLICE (ACB Cochin)

15. Date and time of dispatch to the Court:

17.03.2026

17.54 hr.

P. Renukadevi
17/3/26

पि. रेणुकादेवी भा.पु.से.

P. RENUKADEVI I. P. S.

पुलिस उपमहानरीक्षक

Dy. Inspector General of Police

शाखा प्रमुख/ Head of Branch

केंद्रीय जांच ब्यूरो/एसीब, कोचीन

CBI / ACB, COCHIN

तारीख
Date

23-05-2025

निर्देश

Reference

ITDC/AITD/RO-S/DFS-COC/Vig/25/01

Previous Approval of Competent Authority under section 17A of Prevention of Corruption Act, 1988 as amended by Prevention of Corruption (as amended in 2018).

In exercise of the power conferred by section 17A of the Prevention of Corruption Act, 1988 (as amended in 2018) I, Gaurav Bhatnagar, HOD (Ashok International Trade Division) (Name & Designation of the Competent Authority), being the competent authority to grant / issue previous approval under section 17A of the Prevention of Corruption Act, 1988 (as amended in 2018), necessary previous approval as mandated under section 17A of Prevention of Corruption Act, 1988 (as amended in 2018) against Sh. N. K. Naser, Office Coordinator, ITDC Duty Free Shop, Wellington Island, Cochin, is hereby granted.

Gaurav Bhatnagar
(Gaurav Bhatnagar)
H.O.D. [Ashok International
Trade Division - I.T.D.C.]

Name & Designation of Competent Authority

23/05/2025

उप प्रधान प्रबंधक / Dy. G.M.
भारत पर्यटन विकास निगम लि.
India Tourism Development Corporation Ltd.
अशोक अन्तर्राष्ट्रीय व्यापार प्रभाग
Ashok International Trade Division
स्कोप कॉम्प्लेक्स, कोर-8, पाँचवां तल
Scope Complex, Core-8, 5th Floor
7 लोदी रोड, नई दिल्ली-110003 भारत
7 Lodi Road, New Delhi-110003 INDIA

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കേരള സർക്കാർ
Government of Kerala
2026



Regn.No. KERBIL/2012/45073
dated 05-09-2012 with RNI
Reg No.KL/TV(N)/634/2021-2023

കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്
PUBLISHED BY AUTHORITY

വാല്യം 15
Vol. XV

തിരുവനന്തപുരം,
ശനി

Thiruvananthapuram,
Saturday

2026 ജനുവരി 31
31st January 2026

1201 മകരം 17
17th Makaram 1201

1947 മാഘം 11
11th Magha 1947

നമ്പർ
No.

401

GOVERNMENT OF KERALA

Home (M) Department

ERRATUM NOTIFICATION

G.O.(Ms.) No. 16/2026/HOME

S. R. O. No. 126/2026

Dated, Thiruvananthapuram, 30th January, 2026

In the notification issued under G.O.(Ms.) No.167/2025/HOME dated 30th August, 2025 and published as S.R.O. No. 990/2025 in the Kerala Gazette Extraordinary No. 3133 dated 01st September, 2025, in the preamble and in the explanatory note, for the name "Nazar" read the name "N.K.Naser".

By order of the Governor,

BISHWANATH SINHA,
Additional Chief Secretary to Government.



Explanatory Note

(This does not form part of the notification but is intended to indicate its general purport.)

An error have been inadvertently crept in the notification issued under G.O.(Ms.) No.167/2025/HOME dated 30th August, 2025 and published as S.R.O. No. 990/2025 in the Kerala Gazette Extraordinary No. 3133 dated 01st September, 2025. Government had decided to rectify the mistakes through an erratum.

The notification is intended to achieve the above object.



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കേരള സർക്കാർ
Government of Kerala
2025



Regn.No. KERBIL/2012/45073
dated 05-09-2012 with RNI
Reg No.KL/TV(N)/634/2021-2023

കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്
PUBLISHED BY AUTHORITY

വാല്യം 14
Vol. XIV

തിരുവനന്തപുരം,
വെള്ളി
Thiruvananthapuram,
Friday

2025 നവംബർ 14
14th November 2025
1201 തുലാം 28
28th Thulam 1201
1947 കാർത്തികം 23
23rd Karthika 1947

നമ്പർ
No. } 4026

GOVERNMENT OF KERALA Home (M) Department ERRATUM NOTIFICATION

G.O.(Ms.) No. 213/2025/HOME

Dated, Thiruvananthapuram, 12th November, 2025

S. R. O. No. 1311/2025

In the notification issued under G.O. (Ms.) No. 167/2025/HOME dated 30th August, 2025 and published as S.R.O. No. 990/2025 in the Kerala Gazette Extraordinary No.3133 dated 1st September, 2025, in the preamble and in the explanatory note, *for* the words, phrases, digits "sub section (2) read with clause (c) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (as amended



by the Central Act 16 of 2018)" *read* "sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (as amended by the Central Act 16 of 2018)".

By order of the Governor,

BISHWANATH SINHA,
Additional Chief Secretary to Government.

Explanatory Note

(This does not form part of the notification but is intended to indicate its general purport.)

For the reasons stated in the notification, the Government have decided to issue an erratum to rectify the errors crept in the notification issued under G.O. (Ms.) No. 167/2025/HOME dated 30th August, 2025 and published as S.R.O. No. 990/2025 in the Kerala Gazette Extraordinary No.3133 dated 1st September, 2025.

The notification is intended to achieve the above object.



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Government of Kerala
2025



637
Regn.No. KERBIL/2012/45073
dated 05-09-2012 with RNI
Reg No.KL/TV(N)/634/2021-2023

കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്
PUBLISHED BY AUTHORITY

വാല്യം 14
Vol. XIV

തിരുവനന്തപുരം,
തിങ്കൾ
Thiruvananthapuram,
Monday

2025 സെപ്റ്റംബർ 01
01st September 2025

1201 ചിങ്ങം 16
16th Chingam 1201

1947 ഭാദ്രം 10
10th Bhadra 1947

നമ്പർ
No. } 3133

GOVERNMENT OF KERALA

Home (M) Department

NOTIFICATION

G.O.(Ms.) No. 167/2025/HOME

Dated, Thiruvananthapuram, 30th August, 2025

S. R. O. No. 990/2025

In exercise of the powers conferred by section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Government of Kerala hereby accord consent to the members of the Delhi Special Police Establishment to exercise powers and jurisdiction in the whole State of Kerala for the investigation of the alleged commission of offences punishable under section 120 B read with sections 406, 409, 420, 468 and 471 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and sub section (2) read with clause (c) of sub section (1) of section 13 of the Prevention of Corruption Act,



1988 (as amended by the Central Act 16 of 2018) against (i) Shri Nazar, Office Coordinator, ITDC Duty Free Shop, Wellington Island, Cochin (ii) Shri Subin, Manager, Shop of Flemingo (iii) M/s.Flemingo (Pvt. Firm), Ernakulam Wharff, Wellington Island, Cochin for commission of offences punishable under the said Acts and any other offences committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala..

By order of the Governor.

BISHWANATH SINHA,
Additional Chief Secretary to Government.

Explanatory Note

(This does not form part of the notification, but is intended to indicate its general purport.)

The Central Bureau of Investigation, Anti-Corruption Branch, Cochin have requested the Government of Kerala to accord consent under section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946) for the investigation of alleged commission of offences under section 120 B read with sections 406, 409, 420, 468 and 471 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and sub section (2) read with clause (c) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (as amended by the Central Act 16 of 2018) against (i) Shri Nazar, Office Coordinator, ITDC Duty Free Shop, Wellington Island, Cochin (ii) Shri Subin, Manager, Shop of Flemingo (iii) M/s.Flemingo (Pvt. Firm), Ernakulam Wharff, Wellington Island, Cochin.

The notification is intended to achieve the above object.



[TO BE PUBLISHED IN THE GAZETTE OF INDIA, PART II, SECTION 3, SUB-SECTION (ii)]
GOVERNMENT OF INDIA

MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND PENSIONS
(DEPARTMENT OF PERSONNEL AND TRAINING)

New Delhi, Dated the 5th March 2026

NOTIFICATION

S.O. — In exercise of the powers conferred by sub-section (1) of section 5 read with section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Central Government with the consent of the State Government of Kerala, issued vide Notification No. G.O.(Ms.) No.167/2025/HOME, Dated 30.08.2025, Home (M) Department, Thiruvananthapuram (S.R.O.No. 990/2025), Erratum Notification No. G.O.(Ms.) No. 213/2025/HOME, Dated 12.11.2025, Home (M) Department, Thiruvananthapuram (S.R.O.No. 1311/2025) and Erratum Notification No. G.O.(Ms.) No. 16/2026/HOME, Dated 30.01.2026, Home (M) Department, Thiruvananthapuram (S.R.O.No. 126/2026), hereby extends the powers and jurisdiction of the members of the Delhi Special Police Establishment in the whole State of Kerala for the investigation of the alleged commission of offences punishable under sections 120 B read with sections 406, 409, 420, 468 and 471 of the Indian Penal Code, 1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (as amended by the Central Act 16 of 2018) against (i) Shri N.K. Naser, Office Coordinator, ITDC Duty Free Shop, Wellington Island, Cochin (ii) Shri Subin, Manager, Shop of Flemingo (iii) M/s.Flemingo (Pvt.Firm), Ernakulam Wharff, Wellington Island, Cochin for commission of offences punishable under the said Acts and any other offences committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala.

[F. No. 228/12/2026-AVD-II]

(Satyam Srivastava)

Under Secretary to the Government of India

To,

The Manager,
Govt. of India Press,
Mayapuri, Ring Road,
New Delhi-110064

F. No. 228/12/2026-AVD-II

New Delhi dated: 05.03.2026

Copy to :

- (i) The Chief Secretary, Government of Kerala, Room No. 202, North Sandwich Block, Secretariat, Thiruvananthapuram -695001.
- (ii) The Director, Central Bureau of Investigation (CBI), CGO Complex, New Delhi.
- (iii) Director of Prosecution, CBI, CGO complex, New Delhi.
- (iv) NSMC, Room No. 10, 9th Floor, DoP, CBI, CGO Complex, New Delhi-110003.
- (v) Guard File.

(Satyam Srivastava)

Under Secretary to the Government of India

OFFICE OF THE HEAD OF BRANCH & SP
Central Bureau of Investigation (Govt. of India)

06 MAR 2026

Recd. 10.28

CBI Complex, Kathirkadavu

Kaloor P. O., Kochi 682017, Kerala

6/3

cal (crimi).
P.R.